

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1818

By: Newton

AS INTRODUCED

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 1250.1, which relates to definitions; modifying certain terms; amending 59 O.S. 2021, Section 1253, as amended by Section 1, Chapter 65, O.S.L. 2023 (59 O.S. Supp. 2024, Section 1253), which relates to qualifications and membership for the Oklahoma State Board of Licensed Social Workers; modifying certain terms; amending 59 O.S. 2021, Section 1261.1, as amended by Section 1, Chapter 109, O.S.L. 2024 (59 O.S. Supp. 2024, Section 1261.1), which relates to issuing various types of social worker licenses; modifying certain terms; amending 59 O.S. 2021, Section 1265, which relates to titles and abbreviations of social workers; modifying terms; amending 59 O.S. 2021, Section 1270, which relates to licensed social worker titles; amending certain terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1250.1, is amended to read as follows:

Section 1250.1. As used in the Social Worker's Licensing Act:

1. "Approved provider of continuing education" means an individual, group, professional association, school, institution,

1 organization, or agency approved by the Board to conduct educational
2 programs;

3 2. "Approved social work program" means a school of social work
4 or a social work educational program that has been approved by the
5 Board;

6 3. "Assessment" means the gathering of data about emotional,
7 behavioral, mental, environmental, biopsychosocial, and
8 interactional processes gathered in an effort to identify the
9 client's past and current level of functioning. Assessment may also
10 include the use of standardized psychometric testing instruments
11 upon successful completion of appropriate, specialized courses or
12 training;

13 4. "Board" means the State Board of Licensed Social Workers,
14 which shall also be known as the State Board of Social Work;

15 5. "Board-approved clinical supervisor" means a licensed
16 clinical social worker who has met the qualifications determined by
17 the Board for supervision in a clinical setting;

18 6. "Board-approved supervisor" means a licensed clinical social
19 worker (LCSW) who has met the qualifications determined by the Board
20 for licensure as a supervisor;

21 7. "Case management" means a method to plan, provide, evaluate,
22 and monitor services from a variety of resources on behalf of and in
23 collaboration with a client;

1 8. "Client" means the individual, couple, family, group,
2 organization, or community that seeks or receives social work
3 services;

4 9. "Clinical social work practice" means the practice of social
5 work by a social worker including assessment and diagnosis of
6 behavioral disorders, treatment planning, planning intervention,
7 case management, information and referrals, including referrals to
8 an appropriate allopathic or osteopathic physician when the
9 diagnosis or treatment is in question or psychiatric or medical
10 treatment is indicated. Treatment methods include the provision of
11 individual, marital, couple, family and group counseling and
12 psychotherapy based on the education and training of the social
13 worker. Treatment shall not include biological or medical
14 treatments. The practice of clinical social work may include
15 private or independent practice;

16 10. "Clinical supervision" means an interactional professional
17 relationship between a supervisor and a social worker that provides
18 evaluation and direction over the supervisee's practice of clinical
19 social work and promotes continued development of the social
20 worker's knowledge, skills, and abilities to engage in the practice
21 of clinical social work in an ethical and competent manner;

22 11. "Consultation" means a problem-solving process in which
23 expertise is offered to an individual, couple, family, group,
24 organization or community;

1 12. "Continuing education" means education and training which
2 are oriented to maintain, improve or enhance the practice of social
3 work;

4 13. "Continuing education contact hour" means a sixty-minute
5 clock hour of instruction, not including breaks or meals;

6 14. "Conviction" means conviction of a crime by a court of
7 competent jurisdiction including a finding or verdict of guilt,
8 whether or not the adjudication of guilt is withheld or not entered
9 on admission of guilt, a plea of nolo contendere, or a guilty plea;

10 15. "Counseling" means a method used by social workers to
11 assist individuals, couples, families and groups in learning how to
12 solve problems and make decisions about personal, health, social,
13 educational, vocational, financial, and other interpersonal
14 concerns;

15 16. "Diagnosis" means the use of assessment tools such as the
16 Diagnostic and Statistical Manual or the International
17 Classification of Diseases;

18 17. "Employment supervision" means the professional
19 relationship between a worksite supervisor and social worker in an
20 employment setting which provides evaluation and direction as it
21 pertains to job-related duties. This type of supervision shall not
22 be accepted towards licensure supervision requirements;

1 18. "Examination" means a standardized test or examination of
2 social work knowledge, skills and abilities which have been approved
3 by the Board;

4 19. "Implementation and evaluation" means continuing to
5 evaluate and monitor the effectiveness of the treatment plan;

6 20. "Independent social work practice" means the practice of
7 nonclinical social work by a licensed social worker (LSW), licensed
8 clinical social worker (LCSW) or licensed social worker with
9 administration specialty (LSW-ADM) outside of an organized setting,
10 such as a social, medical, or governmental agency, after completion
11 of all applicable supervision requirements, in which the social
12 worker assumes responsibility and accountability for services
13 provided;

14 21. "Intervention" means application of techniques utilized to
15 implement the treatment plan appropriate to an assessment;

16 22. "Licensed clinical social worker" (LCSW) means a person
17 duly licensed to practice clinical social work under the Social
18 Worker's Licensing Act;

19 23. "Licensed masters social worker" (LMSW) means a person duly
20 licensed to practice social work under the Social Worker's Licensing
21 Act and who holds a master's degree in social work;

22 24. ~~"Licensed social work associate" (LSWA)~~ "Licensed bachelors
23 social worker (LBSW)" means a person duly licensed to practice
24 social work under the Social Worker's Licensing Act;

1 25. "Licensed social worker with administration specialty"
2 (LSW-ADM) means a person duly licensed to practice administrative
3 social work under the Social Worker's Licensing Act;

4 26. "Licensed social worker" (LSW) means a person duly licensed
5 to practice social work under the Social Worker's Licensing Act;

6 27. "Licensee" means a person duly licensed under the Social
7 Worker's Licensing Act;

8 28. "Licensure supervisor" means a licensed social worker who
9 has met the qualifications determined by the Board for a licensure
10 supervisor;

11 29. "Nonclinical social work" means the practice of social work
12 by a social worker to include but not be limited to case management,
13 consultation, education, advocacy and community organization, but
14 excluding counseling in independent practice, psychotherapy,
15 treatment and diagnosis;

16 30. "Nonclinical supervision" means the supervision of social
17 work practice by a social worker to include but not be limited to
18 case management, consultation, education, advocacy and community
19 organization;

20 31. "Practice of social work" means the professional activity
21 of helping individuals, groups or communities enhance or restore
22 their capacity for physical, social and economic functioning and the
23 professional application of social work values, principles and
24 techniques in areas such as clinical social work, social service

1 administration, social planning, social work consultation and social
2 work research to one or more of the following ends: Helping people
3 obtain tangible services; counseling with individuals, families and
4 groups; helping communities or groups provide or improve social and
5 health services; and participating in relevant social action. The
6 practice of social work requires knowledge of human development and
7 behavior; of social economic and cultural institutions and forces;
8 and of the interaction of all of these factors. Social work
9 practice includes the teaching of relevant subject matter and of
10 conducting research into problems of human behavior and conflict.
11 Except as otherwise provided in the Social Worker's Licensing Act,
12 reference to the "practice of social work" shall be the practice of
13 a person licensed under the Social Worker's Licensing Act;

14 32. "Private practice of clinical social work" means the
15 practice of social work performed by a licensed clinical social
16 worker (LCSW) who is wholly or in part self-employed and who assumes
17 responsibility for the nature and quality of the services provided
18 to the client in exchange for direct payment or third-party
19 reimbursement, rather than a salaried employee of an organization or
20 institution;

21 33. "Psychotherapy" means the use of treatment methods
22 utilizing a specialized, formal interaction between a clinical
23 social worker and an individual, couple, family, or group in which a
24 therapeutic relationship is established, maintained and sustained to

1 understand unconscious processes, intrapersonal, interpersonal, and
2 psychosocial dynamics, and the diagnosis and treatment of mental,
3 emotional, and behavioral disorders, conditions and addictions;

4 34. "Supervision" means the professional relationship between
5 an approved supervisor and a social worker that provides evaluation
6 and direction over the services provided by the social worker and
7 promotes continued development of the social worker's knowledge,
8 skills and abilities to provide social work services in an ethical
9 and competent manner; and

10 35. "Treatment planning" or "treatment plan" means the
11 organized approach of an assessment to guide the course of
12 behavioral health treatment based upon identified needs, problems
13 and issues.

14 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1253, as
15 amended by Section 1, Chapter 65, O.S.L. 2023 (59 O.S. Supp. 2024,
16 Section 1253), is amended to read as follows:

17 Section 1253. A. There is hereby re-created, to continue until
18 July 1, ~~2025~~ 2026, in accordance with the provisions of the Oklahoma
19 Sunset Law, the State Board of Licensed Social Workers, consisting
20 of seven (7) members.

21 B. Three of the members of the Board shall be licensed social
22 workers or licensed clinical social workers licensed pursuant to the
23 provisions of the Social Worker's Licensing Act. Two members shall
24 be licensed as either ~~social work associates~~ bachelor's social

1 workers or master's social workers. One member shall be the
2 president of the Oklahoma Chapter of the National Association of
3 Social Workers. The remaining member of the Board shall be selected
4 from and shall represent the general public.

5 C. Responsibility for enforcement of the provisions of this act
6 is hereby vested in the State Board of Social Work. The Board shall
7 have all of the duties, powers and authority specifically granted
8 by, or necessary for, the enforcement of this act as well as other
9 duties, powers and authority it may be granted by applicable law.

10 D. 1. Each member of the Board appointed as a social worker
11 shall:

- 12 a. be a resident of this state,
- 13 b. be licensed in good standing to engage in the practice
14 of social work in this state,
- 15 c. at the time of appointment, have been actively engaged
16 in the practice of social work for at least one (1)
17 year out of the last five (5) years, and
- 18 d. have at least three (3) years of experience in the
19 practice of social work.

20 2. Each member of the Board appointed to represent the general
21 public shall be a resident of this state who has attained the age of
22 majority and shall not be, nor shall ever have been, a social work
23 licensee, or the spouse of a social work licensee, or a person who
24 has ever had any material financial interest in the provision of

1 social work services or has engaged in any activity directly related
2 to the practice of social work.

3 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1261.1, as
4 amended by Section 1, Chapter 109, O.S.L. 2024 (59 O.S. Supp. 2024,
5 Section 1261.1), is amended to read as follows:

6 Section 1261.1. A. To obtain a license under the Social
7 Worker's Licensing Act, an applicant shall:

8 1. Submit a written application in a form prescribed by the
9 State Board of Licensed Social Workers;

10 2. Have attained the age of majority;

11 3. Have graduated and received a degree in social work from an
12 approved social work program;

13 4. Have completed any necessary post graduate experience and
14 supervision in the practice of social work;

15 5. Have passed the necessary examination and paid all fees
16 required by the Board; and

17 6. Submit to a national criminal history record check, as
18 defined by Section 150.9 of Title 74 of the Oklahoma Statutes. The
19 costs associated with the national criminal history record check
20 shall be paid by the applicant and submitted to the Board at the
21 time of application. With the required fee, the applicant shall
22 provide to the Board two classifiable sets of fingerprints to be
23 provided to the Oklahoma State Bureau of Investigation.

1 B. If the results of the national criminal history record check
2 required by subsection A of this section reveal that the applicant
3 has been convicted of, or pled guilty or nolo contendere to, any
4 felony crime that substantially relates to the occupation of a
5 social worker and poses a reasonable threat to public safety, the
6 individual's application for licensure may be disapproved and no
7 further action shall be taken on the application.

8 C. Upon certification by the Board, the Board shall authorize
9 the issuance of social work licenses to persons who qualify as
10 follows:

11 1. As a licensed ~~social work associate (LSWA)~~ bachelor's social
12 worker (LBSW) who has a baccalaureate degree in social work from an
13 accredited institution or an approved social work program or both
14 and has passed the examination provided for under these provisions
15 or who has a doctoral or master's degree in social work from an
16 institution with a program accredited by an approved social work
17 program and has passed the examination provided for under these
18 provisions;

19 2. As a licensed master's social worker (LMSW) who has a
20 master's degree in social work from an accredited institution or an
21 approved social work program or both and has passed the examination
22 provided for under the Social Worker's Licensing Act;

23 3. As a licensed social worker (LSW) who has a master's degree
24 in social work from an accredited institution or an approved social

1 work program or both and has three thousand (3,000) hours of
2 postgraduate experience in the practice of social work under
3 professional supervision of a person licensed under those
4 provisions, and who has passed the examination provided for under
5 the provisions of the Social Worker's Licensing Act;

6 4. As a licensed clinical social worker (LCSW) who has a
7 master's degree in social work from an accredited institution or an
8 approved social work program or both and has three thousand (3,000)
9 hours of postgraduate experience in the practice of clinical social
10 work under professional supervision of a person licensed by the
11 Social Worker's Licensing Act, and who has passed the examination
12 provided for under the Social Worker's Licensing Act; and

13 5. As a licensed social worker with administration specialty
14 (LSW-ADM) who has a master's degree in social work from an
15 accredited institution or an approved social work program or both
16 and has three thousand (3,000) hours of postgraduate experience in
17 the practice of administrative social work under professional
18 supervision of a person licensed by the Social Worker's Licensing
19 Act, and who has passed the examination provided for under the
20 Social Worker's Licensing Act.

21 D. Applicants who have been licensed as an ~~LSWA~~ LBSW, LMSW,
22 LSW, LCSW or LSW-ADM in good standing in another state for a minimum
23 of three (3) years continually since the time of initial full
24

1 licensure post-provisional term and comply with all other state
2 requirements shall be licensed by the Board.

3 E. No person may engage in the private practice of clinical
4 social work unless that person:

5 1. Is licensed under the Social Worker's Licensing Act as a
6 licensed clinical social worker (LCSW); and

7 2. Continues to meet continuing education requirements set by
8 the Board.

9 F. No person may engage in an independent social work practice
10 unless that person:

11 1. Is licensed under the Social Worker's Licensing Act as a
12 licensed clinical social worker (LCSW), licensed social worker with
13 administration specialty (LSW-ADM) or licensed social worker (LSW).
14 This specifically and intentionally excludes licensed ~~social work~~
15 ~~associates (LSWA)~~ bachelor's social workers (LBSW) and licensed
16 masters social workers (LMSW); and

17 2. Continues to meet continuing education requirements set by
18 the Board.

19 G. Any person seeking to pursue postgraduate supervision for
20 the licensed social worker (LSW), licensed social worker with
21 administration specialty (LSW-ADM), or licensed clinical social
22 worker (LCSW) must hold licensure status of licensed ~~social work~~
23 ~~associate (LSWA)~~ bachelor's social worker (LBSW) or licensed masters
24 social worker (LMSW) prior to board approval of postgraduate

1 supervision for licensure as specified in paragraphs 3, 4 and 5 of
2 subsection C of this section.

3 H. As used in this section:

4 1. "Substantially relates" means the nature of criminal conduct
5 for which the person was convicted has a direct bearing on the
6 fitness or ability to perform one or more of the duties or
7 responsibilities necessarily related to the occupation; and

8 2. "Poses a reasonable threat" means the nature of criminal
9 conduct for which the person was convicted involved an act or threat
10 of harm against another and has a bearing on the fitness or ability
11 to serve the public or work with others in the occupation.

12 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1265, is
13 amended to read as follows:

14 Section 1265. Any person who has received a license as a
15 licensed ~~social work associate~~ bachelor's social worker shall have
16 the right to use the title Licensed ~~Social Work Associate~~ Bachelor's
17 Social Worker, and the abbreviation, ~~LSWA~~ LBSW. No other person
18 shall assume such title, use such abbreviation, or any word or
19 letters, signs, figures or devices to indicate that the person using
20 the same is a licensed ~~social work associate~~ bachelor's social
21 worker.

22 SECTION 5. AMENDATORY 59 O.S. 2021, Section 1270, is
23 amended to read as follows:

24 Section 1270. A. It shall be a misdemeanor for any person to:

1 1. Use in connection with his or her name any designation
2 tending to imply that he or she is licensed under the Social
3 Worker's Licensing Act unless he or she is duly and respectively
4 licensed under the provisions of this act;

5 2. Use in connection with his or her name any designation
6 tending to imply that he or she is licensed under the provisions of
7 this act during the time his or her license shall be suspended or
8 revoked; or

9 3. Otherwise violate any of the provisions of this act.

10 B. 1. Except as otherwise provided, it shall be unlawful for
11 any individual to engage in the practice of social work unless duly
12 licensed under this act.

13 2. Except as otherwise provided, it shall be unlawful for any
14 individual to engage in the practice of Clinical Social Work unless
15 duly licensed as a Clinical Social Worker under this act.

16 3. No individual shall offer social work services or use the
17 designation social worker, licensed ~~social work associate~~ bachelor's
18 social worker, licensed master's social worker, licensed social
19 worker, licensed clinical social worker or the initials ~~L~~SWA LBSW,
20 LMSW, LSW, or LCSW or any other designation indicating licensure
21 status or hold themselves out as licensed to practice social work
22 unless duly licensed.

23 4. The provision of social work services to an individual in
24 this state, through telephonic, electronic or other means,

1 regardless of the location of the social worker, shall constitute
2 the practice of social work and shall be subject to regulation.

3 5. Any individual who, after hearing, is found by the State
4 Board of Licensed Social Workers to have unlawfully engaged in the
5 practice of social work or to have violated other provisions of this
6 act shall be subject to a fine to be imposed by the Board not to
7 exceed Five Hundred Dollars (\$500.00) for each offense. Each
8 violation of this act or Board rules pertaining to unlawful practice
9 of social work shall also constitute a misdemeanor.

10 6. Nothing in this act shall be construed to prevent members of
11 other professions from performing functions for which they are duly
12 licensed; provided, however, such professionals shall not hold
13 themselves out or refer to themselves by any title or description
14 stating or implying that they are engaged in the practice of social
15 work or that they are licensed to engage in the practice of social
16 work.

17 7. Students currently participating in an approved social work
18 program are exempt from licensure under this act when enrolled in or
19 participating in an internship, externship, or other social work
20 experience requirements for such programs.

21 SECTION 6. This act shall become effective November 1, 2025.
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23 60-1-10374 TKR 12/18/24
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